

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
August 20, 2026
8:30 AM/1:30 PM

15. KAREN SILVA V. DAVID NAUFAHU

25FL0154

Petitioner filed a Petition for Custody and Support on February 20, 2025. There is no Proof of Service showing Respondent has been properly served.

Petitioner filed a Request for Order (RFO) on March 6, 2026, requesting child custody orders. Parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on April 16, 2026 and a review hearing on June 4, 2026. Respondent was electronically served some of the required documents on April 1, 2026.

Only Petitioner appeared at CCRC on April 16, 2026. A single parent report was issued the same day. It was mailed to parties on April 20th.

Petitioner filed a Request to Reschedule the hearing and be rereferred to CCRC on May 18, 2026. The court granted the request and rescheduled CCRC and the review hearing the same day.

Also on May 18, 2026, Petitioner filed a request to serve Respondent via posting. The request was granted the same day.

Neither party appeared at the CCRC appointment on July 8, 2026.

Petitioner filed a letter on July 13, 2026, stating she was hospitalized at the time of the CCRC appointment. It was served electronically on July 13th.

The court drops the matter from calendar. There is no Proof of Service showing the Petition and Summons have been properly served. As such, the court does not have jurisdiction to make orders in this case.

TENTATIVE RULING #15: THE COURT DROPS THE MATTER FROM CALENDAR. THERE IS NO PROOF OF SERVICE SHOWING THE PETITION AND SUMMONS HAVE BEEN PROPERLY SERVED. AS SUCH, THE COURT DOES NOT HAVE JURISDICTION TO MAKE ORDERS IN THIS CASE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON

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**THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE
8.05.07.**